

**BEFORE THE
BOARD OF EDUCATION OF THE
BERKELEY UNIFIED SCHOOL DISTRICT
ALAMEDA COUNTY
STATE OF CALIFORNIA**

In the Matter of the Statement of the Reduction in Force of:

NOLUTHANDO LISA WILLIAMS, a Certificated Employee,

Respondent.

OAH No. 2025040924

PROPOSED DECISION

Administrative Law Judge Michael C. Starkey, State of California, Office of Administrative Hearings (OAH), heard this matter on May 2, 2025, via videoconference.

Attorney Marci Williams represented complainant Samantha Tobias Espinosa, Assistant Superintendent, Human Resources, Berkeley Unified School District (District).

Attorney Stewart Weinberg represented respondent Noluthando Lisa Williams, also known as Lisa Williams, who was present.

Weinberg also represented the other nine respondents who were served with layoff notices and requested a hearing. Weinberg reports and the evidence establishes that as to each of these nine respondents, either the layoff notice was rescinded, or the respondent withdrew the respondent's request for hearing. The hearing proceeded as to respondent Williams only.

The record closed and the matter was submitted on May 2, 2025.

FACTUAL FINDINGS

1. On March 6, 2025, the Board of Education of the Berkeley Unified School District (Board) adopted Resolution No. 25-025, stating that it considered all positively assured attrition and found it necessary to reduce or discontinue additional services no later than the conclusion of the 2024-2025 school year, including two full-time “Teacher – CTE Credential, Health Science and Medical Technology” positions.

2. On March 11, 2025, the District served a notice of reduction in force, including copies of the resolution, relevant sections of the Education Code, and a request for hearing form, to respondent Noluthando Lisa Williams, also known as Lisa Williams.

3. Respondent timely requested a hearing and this proceeding followed.

4. However, respondent did not challenge any aspect of the District’s reduction in force notice to her. Respondent stipulated that she received proper notice of the layoff; that the District does not plan to offer enough courses for her to teach during the next school year; that she is the only (and therefore least senior) teacher in her position; and that no other certificated employee with less seniority is being retained to teach a subject that she is competent to teach.

LEGAL CONCLUSIONS

1. Jurisdiction in this matter exists under Education Code sections 44949 and 44955. (Factual Findings 1–3.)

2. The District, through its Board, has discretion to reduce or eliminate particular kinds of services, in the best interests of the District and its students. The Board's exercise of this discretion as stated in Resolution No. 25-025 is not arbitrary or capricious, and is not an abuse of discretion.

3. Respondent stipulates that she received proper notice; she is the least senior teacher in her position; and that the District has not retained any other certificated employee with less seniority to teach a subject that she is competent to teach. Respondent offers no legal challenge to the District's action. (Factual Finding 4.)

4. The District established cause to give notice to respondent that the District will not require her services after the conclusion of the 2024–2025 school year.

ORDER

The District's reduction in force is sustained as to respondent Noluthando Lisa Williams, also known as Lisa Williams. Notice may be given to respondent that her services will not be required after the conclusion of the 2024-2025 school year.

DATE: 05/05/2025



MICHAEL C. STARKEY

Administrative Law Judge

Office of Administrative Hearings